REQUEST FOR PROPOSALS

#12-26

EXPANDED LEARNING OPPORTUNITIES PROGRAMS (ELOP) INTERMEDIATE ENRICHMENT PROGRAMS

PROPOSAL DEADLINE DATE

April 7, 2026

By 2:00 p.m.

SUBMIT PROPOSALS TO

Benjamin Barajas

Senior Buyer

SANTA ANA UNIFIED SCHOOL DISTRICT

1601 E. Chestnut Avenue, Purchasing Dept., Rm A150

Santa Ana, California 92701

Phone: 714.558.5614

SANTA ANA UNIFIED SCHOOL DISTRICT NOTICE TO SUBMITTERS

RFP NO. 12-26

Expanded Learning Opportunities Programs (ELOP) Intermediate Enrichment Programs

In accordance with Public Contract Code 20111, notice is hereby given that the Santa Ana Unified School District, will receive up to, but no later than 2:00 p.m., on April 07, 2024, at the Purchasing Department, Room 150, 1601 East Chestnut Avenue, Santa Ana, CA 92701, Requests for Proposal (RFPs) for the award of a contract Expanded Learning Opportunities Programs (ELOP) Intermediate Enrichment Programs

Each RFP must conform and be responsive to the RFP documents, copies of which may be obtained on the Purchasing Department website at https://vendors.planetbids.com/portal/33081/bo/bo-search or by calling the Purchasing Department at (714) 558-5614.

No submitter may withdraw his RFP for a period of sixty (60) days after the date set for submission.

All RFPs shall be made and presented in the form requested by the District. One original copy and one digital copy must be submitted. All contracts entered into as a result of this RFP will be contingent upon funding and may be canceled by the District by providing notice to the vendor no less than 30 days prior to the renewal date of the contract.

The District reserves the right to waive any irregularities, accept or reject any or all RFPs and to accept or reject any items thereon.

SANTA ANA UNIFIED SCHOOL DISTRICT
Benjamin Barajas
Senior Buyer

Published: Orange County Register
March 13, 2026
March 20,2026

Tentative Timeline

Milestone	Date
Advertisement Dates (Orange County Register)	March 13, 2026 and March 20, 2026
Request for Information Due	March 27, 2026 by 4:30 P.M. PST
Addendum	April 2, 2026 by 4:30 P.M. PST
Proposals Due Date	April 7, 2026 No Later Than 2:00 P.M. PST
Award of Contract(s) by Authorization of the Board of Education	June 2026
Execution of Contract	June 2026

INSTRUCTIONS AND CONDITIONS

1. DEFINITIONS:
   a. As used herein, "RFP" means this Request for Proposal, RFP 12-26.
   b. As used herein, "District" or "SAUSD" means the Santa Ana Unified School District.
   c. As used herein, "Offeror" means the Firm or Contractor submitting a Proposal.
   d. As used herein, "Offer" means the Proposal.
   e. As used herein, "Contract" means an associated Agreement with the District.
   f. As used herein, "Contractor" means the firm or Contractor that is awarded the contract with the District

2. PREPARATION OF PROPOSALS:
   a. One (1) paper copy of the proposal and a complete copy on a flash drive shall be sealed together and submitted by no later than the closing date and time. Proposals shall be delivered to the attention of: Benjamin Barajas, Senior Buyer, Purchasing Department, Santa Ana Unified School District, 1601 E. Chestnut Ave., Santa Ana, CA 92701. It is the sole responsibility of the firm submitting the proposal to ensure that it is actually received by the District prior to the deadline time and due date and at the proper location. Unless this RFP is extended by a written amendment, proposals received after the due date and time, will not be considered.

   b. Proposals shall be completed in all respects as required by the instructions herein. A proposal may be rejected if it is conditional or incomplete, or if it contains alterations of form or other irregularities of any kind. A proposal will be rejected if, in the opinion of the DISTRICT, the information contained therein was intended to mislead the DISTRICT in the evaluation of the proposal.

   c. The proposal submitted must not contain erasure, interlineations, or other corrections unless each correction is clearly and conspicuously authenticated by signing in the margin immediately opposite the correction the name of the person signing the proposal. An Offeror will be bound

by the terms and conditions of the proposal, notwithstanding the fact that errors may be or are contained therein. However, if material errors are actually discovered in a proposal, the DISTRICT will notify the Offeror that the proposal, as submitted, appears to contain errors and require the Offeror to correct the errors.

d. The DISTRICT requests that Offerors provide a best and final offer.

e. The DISTRICT may request a meeting with the Offerors representative to request answers and clarifications or it may request that the Offeror answer specific questions in writing, or to make a presentation to the District or to its Governing Board prior to any Agreement award.

f. The DISTRICT may reject any or all proposals, and may waive informalities and minor irregularities in proposals received.

g. All current and past providers must submit new proposals.

h. All proposals and materials submitted in response to this RFP shall become the property of the District and shall be considered a part of the Public Record.

i. After acceptance of the proposal by the District, a contract between the successful firm and the District will be executed and will consist of the terms and conditions of this RFP and the Scope of Work and Requirements.

3. EXPLANATIONS TO OFFERORS:

a. If an Offeror desires an explanation or clarification of any kind regarding this RFP, the Offeror must make a written request for such explanation. Requests should be made by email to Benjamin.barjas@sausd.us by April 07, 2026. Please indicate RFP #12-26 in the subject line of email.

b. The District will advise all Offerors known to have received a copy of the RFP of the explanation or clarification in the space provided on the abovementioned web site.

c. If an Offeror discovers any error such as an ambiguity, conflict, discrepancy, omission, or other error in the RFP, then the Offeror shall immediately notify the District in writing.

4. AMENDMENTS:

Offerors are advised that the District reserves the right to amend this RFP at any time, prior to the RFP closing date. Amendments will be done formally by providing written amendments to all potential Offerors known to have received a copy of the RFP. If in the sole and absolute discretion of the District, the change is of such a nature that additional time is required for Offeror to prepare proposals, the District will change the due date deadline and notify all known Offerors in writing of the revised deadline due date. All addendums will be posted on the District web site.

a. Offerors must acknowledge receipt of any and all RFP amendments. This shall be done by the following means:

Include Signed Addenda with Firm Proposal/Offer Form

b. Failure to acknowledge in writing the receipt of any amendments may result in proposal rejection.

5. VALIDITY OF FIRM PROPOSAL/OFFER:

Each proposal/offer must be a firm irrevocable offer, and remain open and valid for sixty (60) days after RFP closing date.

6. SUBMITTING PROPOSALS:

E-mail, telegraphic or facsimile offers or electronic offers and modifications will NOT be considered.

7. MODIFICATION OR WITHDRAWAL OF PROPOSAL:

An Offeror may modify or withdraw a proposal after submission by written notice of withdrawal and re-submission provided that the proposal withdrawal is prior to the due date deadline specified for submission of proposals.

8. LATE PROPOSALS:

No proposal or proposal modification received after the due date deadline will be considered.

9. PROPOSAL EVALUATION:

a. It is anticipated that a contract will be made with the Offeror whose proposal is determined to be in the overall best interest of the District by applying the evaluation criteria established in this RFP.

b. A District Proposal Evaluation Committee will determine which, if any, proposal is in the District's overall best interest to accept. The committee members will utilize the data provided by the Offeror in the chart below to rank Offerors submissions. A rating score of 80% or higher is required for an Offeror to be invited to participate in Round 2 evaluations. It is the Offerors responsibility to answer all items in the chart and include this chart with their RFP submission. During the evaluation, the District may request proposal clarifications, explanations and answers from an Offeror. The District may request an Offeror presentation and interview.

10. AGREEMENT REQUIREMENTS:

The firm selected will also be required to promptly enter into a Consultant Agreement with the District, that agreement along with the required scope of work for the RFP offering will serve as the terms and conditions of this RFP and is attached here to.

11. Mandatory RFP Submittal Documents

    Please ensure that the following documents are part of your RFP submittal, you are required to submit 1 hard copy of your proposal along with a complete copy on a flash drive.

- Firm Proposal/Offer Form
- Non-Collusion Declaration

Expanded Learning Opportunities Programs (ELOP) Intermediate Enrichment Programs

Scope of Work and Requirements

The California Department of Education (CDE) After School Education and Safety (ASES) grant and the Expanded Learning Opportunities Programs (ELOP) funding require establishing before and/or after-school education and enrichment programs. These programs are created through partnerships between schools and the local community to provide literacy and academic enrichment, and to offer safe, constructive alternatives for students in transitional kindergarten through eighth grade. The after-school program provides an opportunity to merge school reform strategies with community resources. The goal is to support local efforts to improve student support and broaden the base of support for learning in a safe, constructive environment.

By way of this Request for Proposals (RFP), the Santa Ana Unified School District (SAUSD) intends to award contracts to qualified after-school enrichment providers. The purpose of this RFP is to obtain information that will enable the District to select qualified enrichment providers to offer enrichment and safe, constructive alternatives for students in grades TK-5. The request for specific types of enrichment offerings is indicative of responses obtained through stakeholder engagement opportunities. Enrichment activities align with at least one of the five areas: 1) Arts and Culture (e.g. music, instrumental, fine arts, cooking); 2) Science Technology Engineering and Math (STEM) (e.g. robotics, coding, e-sports/gaming); 3) 21st Century Skills (e.g. technology, leadership, etc.); 4) College and Career Readiness (e.g. career exploration; professional study skills, organizational skills, etc.); and 5) specialized movement (e.g. fitness, dance, karate, etc.).

SAUSD emphasizes aligning community provider (CP) placements with students' interests to ensure the most beneficial and engaging experience possible. To achieve this, a comprehensive student interest survey will be administered across all school sites during the preceding academic year. The survey results will play a pivotal role in determining the allocation of community providers to various sites. This approach ensures that the programs and activities offered are directly responsive to our student population's expressed interests and needs, fostering a more vibrant and participatory educational environment.

Intermediate and TK-8th school enrichment providers focusing on 6th-8th grade students are expected to deliver the following services:

- *Implement two (2) in-person 12-week semesters* targeting intermediate and TK-8th-grade schools, specifically for students in 6th-8th grades.
- Provide enrichment sessions twice a week over the course of the *two (2) in-person 12-week semesters* at the school site.
- Ensure sufficient staff availability and substitute coverage to deliver program service at a minimum of 6 schools and a maximum of 18 schools per *semester*.
- Semester 1 of the program will start in the second month of the school year, September, with Semester 2 concluding toward the end of May.
    - Community Provider student recruitment will take place over 2 weeks in August and

January.

- 6th-8th-grade sessions will be 60 minutes
    - Pio Pico Elementary- 6th-7th grade students
- Schedule weekly enrichment sessions Monday-Thursday for each school, starting 15 minutes post-school dismissal.
    - Please note that Wednesdays have an earlier dismissal time per SAUSD's bell schedule, which will be provided approximately 2 weeks prior to the school start date.
    - Dismissal times may vary per school site.
- Each session will accommodate at least 10 students and no more than *20* students.
    - If registration for the program is at 9 or less, then the session will be closed due to low enrollment.
    - Community Providers must monitor attendance trends to ensure the minimum attendance is maintained throughout the Semester.
- A formal culminating event must occur at each school site served per semester.
- A break in service will occur before the start of *Semester 2* to allow Community Provider staff time to host recruitment and registration for upcoming programs.

1 PROGRAM IMPLEMENTATION

1.1 Proposed enrichment services must align with at least one of the five areas: 1) Arts and Culture; 2) Science, Technology, Engineering and Math (STEM); 3) 21st Century Skill; 4) College and Career Readiness; and 5) specialized movement.

1.2 Implement program services based on established *semester* dates and assigned locations.

1.2.1 Enrichment services will begin on the second month of the school year, in September

1.2.2 Enrichment services will conclude the last month of May of the school year

1.2.3 Community providers will serve approximately *20* students per school per week

1.2.4 Community providers may serve up to 14 schools per *semester* throughout the school year based on the Community provider's staff capacity and the number of sites they can service.

1.3 Community Providers must establish a substitute system/protocol to ensure adequate staff coverage.

1.4 In collaboration and with District approval, develop bilingual marketing materials to inform the students and parents of the enrichment services, as needed.

1.5 Communicate staffing changes to the District as soon as possible if services are impacted.

1.6 Community Provider staff will be responsible for recruiting students on-site throughout the recruitment day designated by the district. This recruitment can occur before, during, or after school hours. Recruitment completed during the school day must be in collaboration with the Expanded Learning Site Supervisor and approved by the principal.

1.7 Community Providers, with a waitlist, may have the option to facilitate more than two sessions weekly per school to accommodate additional demand, if it does not exceed the Community Provider contract award amount.

1.8 In accordance with SAUSD Board Policy 0410 (Nondiscrimination In District Programs And Activities), enrichment programs are required to be accessible to ALL students. All individuals shall be treated equitably in the receipt of district and school services.

2 COMMUNITY PROVIDER PROGRAM EVALUATION

2.1 Prior to the start of each new school year, Community providers must submit an Executive Summary of their Program Evaluation, including their Program Goals, Assessment Plan (with any Pre- and Post-assessment questions/tools), and a description of their Continuous Quality Improvement (CQI) process.

2.2 An outcome report must be completed and submitted at the end of each program *semester* by the Community provider, and include: *semester* Dates, schools served, # of students assessed, restated predictions, survey results, and goals for the next *semester*

2.2.1 Outcome reports are due two (2) weeks after the end of each *semester*.

2.2.2 Community Provider staff will administer a student feedback survey at the end of each *semester,* and the results will be included in their outcomes report.

2.3 Community Provider staff will monitor ongoing student participation (e.g., attendance).

3 PROFESSIONAL DEVELOPMENT

3.1 All Community provider administrators and program staff will be required to attend district-provided professional development

3.1.1 Once a year, the District hosts a SAUSD New Hire Community Provider Orientation: General Program Overview, Policies and Procedures, Student Supports, Positive Behavior and Intervention Supports, and Effective Supervision (Approx. 4 hours). Should Community Provider staff be hired after the professional development date or are unable to attend on schedule, it becomes the Community Provider's obligation to ensure the training is completed asynchronously. Proof must be provided to the district upon completion.

3.1.2 *Community Provider must have all staff trained in* Sexual Harassment and Discrimination and Mandated Reporter training. Proof must be provided to the district upon *request.*

3.2 Community providers must ensure that all administrators and program staff are appropriately trained in the specific subject area, enrichment activity, or service focus in which they will be providing programming to students. Such training must be completed before the staff delivers services.

3.2.1 Community Provider shall maintain documentation verifying staff training and qualifications related to the designated program area. Proof must be provided to the District upon request.

4 STAFFING

4.1 All Community provider administrators and program staff who will have direct contact with students or visit school sites must complete the background check and other onboarding items (TB Test; Emergency Contact Form) process prior to accessing a school campus.

4.2 All Community provider administrators and program staff, who will have direct contact with students or visit school sites, must complete the required District training as indicated in section 3.1.

4.3 Community provider program staff, working directly with students, must meet the minimum qualifications of the District After School Instructional Provider position: High School Diploma and AA or 48 college units. Evidence of meeting the minimum qualifications must be submitted to the district upon request.

4.4 Any Community provider program staff with allegations brought forward against him or her will be subject to the District's Community Provider investigation process, including but not limited to removal from the after-school program.

4.4.1 Community provider administrators will be involved in the investigation process, when possible, and will be required to meet with District administration regarding the investigation findings.

5 ADMINISTRATIVE REQUIREMENTS

5.1 A representative must be appointed to the district as a liaison between the community provider and the District.

5.2 Community providers must attend a monthly Community Provider meeting. A representative must be appointed to attend these meetings, with a backup representative identified in the event the appointed representative cannot attend.

5.3 Community provider representatives must be available during program hours and available for any urgent district or personnel matters.

5.2 Invoices need to be submitted bi-monthly or monthly for all services to the Expanded Learning department (please reference the contract subsection 1.12.3 Consultant Invoices, also see sample attachment #4).

5.3 Any solicitation to participate in a program not related to Expanded Learning needs to be done outside of the program or follow the district's approval process.

6 BUDGET

6.1 Community providers will be awarded contracts based on their proposed budget and program site needs.

6.2 Community providers must complete the Program Budget Template (appendix x) and include the following:

6.2.1 Ongoing costs (direct and indirect services)

6.2.1.1 Budget per *semester* is not to exceed *$4,439.00*

6.2.1.2 Budget session cost is $193.00. Service costs include all salaries/statutory costs, staff prep/closing time, professional development, and materials.

6.3.2 One-time costs (supplies & equipment)

6.3.2.1 One-time costs can only be invoiced in the first year of implementation and in the event that technology (i.e., laptops, robotic equipment, speakers) becomes outdated.

6.3.2.2 Upon the district's request, technology (i.e., laptops, robotic equipment, speakers) may be subject to being turned over to the district.

6.4 Should the district decide to discontinue services with a Community Provider or at the end of the contract, any equipment valued over $500.00 must be turned over to the district.

6.4.1 Per the California Department of Education Expanded Learning Department, equipment must clearly be labeled "Property of the LEA/grantee", and not the property of the subcontracted third party.

6.4.2. All items valued over $500.00 must be logged on an Expanded Learning inventory equipment tracker (please reference attachment #5 the equipment tracker template).

6.5 Outside of the proposed budget, no requests of the District or students will be made to fund any participation in the program.

All proposals shall address the following items in the order listed below. The proposal is to demonstrate the qualifications, competence, and capacity of the firm:

Section A. Agency Profile – Provide a Profile of Your Company

i. Include legal form of Agency, number of years in operation, home office location, and local office location (if different).

ii. Include the organization's history, vision, and mission, along with the number of years the agency has provided similar services to other districts or partners.

iii. Include history working with the Santa Ana Unified School District outside of an Expanded Learning contract (if applicable).

Section B. Program Design

i. Describe the number of school sites your agency has the capacity to serve.

   a. Serving a school requires hosting *two (2) in -person 12-week semesters,* with each *semester* hosting two (2) sessions per week (e.g., 6th-8th, Monday and Wednesday for *12* weeks).

ii. Describe the curriculum the agency will offer that includes expert knowledge, experience, and ability in <u>at least one</u> of the following areas: Arts and Culture, Science, Technology, Engineering and Math (STEM), 21st Century Skills, College and Career Readiness, and/or Specialized Movement for elementary and intermediate students.

iii. Describe the curriculum the agency will offer, specific to grade levels 6th-8th.

iv. Describe the ways in which the agency will ensure a quality enrichment program in the following quality standards for expanded learning:

   a. **Safe & Supportive Environments** - The program provides a safe and nurturing environment that supports the developmental, social-emotional, and physical needs of all students, including a *20:1* student-to-staff ratio.

   b. **Active & Engaged Learning** - Program design and activities reflect active, meaningful, and engaging learning methods that foster collaboration and broaden students' horizons.

   c. **Skill Building** - The program maintains high expectations for all students, intentionally links program goals and curricula with 21st-century skills, and provides activities to help students achieve mastery.

   d. **Youth Voice & Leadership** - The program provides and supports intentional opportunities for elementary and intermediate students to play a meaningful role in program design and implementation, and provides ongoing access to authentic leadership roles.

   e. **Healthy Choices & Behaviors** - The program promotes student well-being through opportunities to learn about and practice balanced nutrition, physical activity, and other healthy choices in an environment that supports a healthy lifestyle.

   f. **Diversity, access, and equity -** The program creates an environment in which students experience values that embrace diversity and equity regardless of race, color, religion, sex, age, income level, national origin, physical ability, sexual orientation, and/or gender identity and expression.

g. **Quality Staff** - The program recruits and retains high-quality staff and volunteers who are focused on creating a positive learning environment and provides ongoing professional development based on assessed staff needs.

h. **Collaborative Partnerships** - The program intentionally builds and supports collaborative relationships among internal and external stakeholders, including families, schools, and the community, to achieve program goals.
   i. Students
   ii. Parents/Guardians
   iii. Program Staff

i. **Program Management** - The program has sound fiscal and administrative practices supported by well-defined and documented policies and procedures that meet requirements.

Section C. Organizational Operations

i. Describe your agency's capacity to hire, train, and retain staff.

ii. Describe how your agency will recruit and retain students.

iii. Describe your agency's capacity to ensure that substitutes are provided in the event of a staff member's absence.

iv. Describe the types of professional development and ongoing coaching/support you offer to staff, how often, and when and to whom.

v. Describe how your agency will communicate information about the enrichment programs, including evaluation results and ongoing opportunities to interact with your agency to parents, school personnel, and the community.

Section D. Program Evaluation

i. Describe your evaluation plan to measure the program's impact on students, including:
   a. Goals
   b. Methods
   c. Metrics

ii. Describe how the evaluation information will be used for Continuous Quality Improvement.

Section E. General Budget Information

i. Include a completed program budget, using the Program Budget Template (appendix X) in your proposal below.
   a. Indicate per *semester* cost (not to exceed $4,439.00 per *semester)* (Inclusive of all Service

Costs: Staff Salaries/Statutory, Staff Prep/Closing Time, Professional Development, and Materials)

b. Indicate one-time purchases (e.g., equipment, etc.)

ii. The original program budget submitted with the proposal will be used only for the contract award amount.

iii. Include a program budget narrative detailing all line items in the Program Budget Template (e.g. # number of employees, pay rate, etc.)

iv. Describe any "in-kind" resources to be provided, including but not limited to outside grants, volunteers, services, or other resources.

v. Include an organization chart.

Program Budget Template

Ongoing Program Budget Calculations (Invoiced Monthly once services are rendered)		
Description		**Yearly Budget Request**
Program Budget Per *Semester* (All programs require *two (2) in-person 12-week semester*s, two (2) sessions per week, per grade level per semester. Budget not to exceed $4,439.00 per *semester,* based on $193.00 per session cost. ● Service Cost is inclusive if all staff salaries/statutory, staff prep/closing time, professional development, and materials Semester Cost: Number of School Sites: ADD DESCRIPTION/DETAILS	**TOTAL**	$
New Hire Staff Hours (6 Hours Per Staff)	**TOTAL**	$
Recruitment Budget Per Semester (All programs require a 2-week period of recruitment per semester. Budget not to exceed $1000 per Semester per school site) ADD DESCRIPTION/DETAILS	**TOTAL**	$
	TOTAL BUDGET	$

One-time Program Budget Calculations (awarded year one only)		
Description		***Budget Request***
SUPPLIES & EQUIPMENT ***Including but not limited to technology, instruments, equipment, etc.*** ***ADD DESCRIPTION/DETAILS***	***TOTAL***	***$***
	TOTAL BUDGET	***$***

Proposed Ongoing Budget	$
Proposed One-time Budget	$
Proposed Total Budget	$

SANTA ANA UNIFIED SCHOOL DISTRICT

Expanded Learning Opportunities Programs (ELOP) Elementary and Intermediate Enrichment Programs

RFP EVALUATION

Evaluation of Firms: All proposals will be evaluated using this evaluation sheet. Each proposal will be reviewed and scored based solely on the information provided in the proposer's written response to the RFP. A minimum score of 80 points is required to qualify for the 2nd round of evaluation, which includes review by a panel (if applicable). Up to 10 additional points may be awarded in the second round based on the subjective determination of the Proposer's ability to carry out the required work. SAUSD will select the top-rated proposers to be awarded the contract for these services.

Instructions: Evaluators should review each proposer's response and use the guiding questions under each criterion to assess the proposal. Assign a score within the designated range that reflects the overall quality, completeness, and feasibility of the response and record notes to support the rating. Scores must be based only on the information provided in the written proposal. After scoring all criteria, calculate the final total score.

Proposer Name: _____ **Evaluator** _____

Criteria #1- Program Design (20 points)	**Notes**
1. Program Design ● How well does the proposer demonstrate capacity to serve multiple school sites and provide two program sessions per week? (e.g. TK-2nd Monday and Wednesday for 12 weeks). **(B.i)** ● Clearly align their program with at least one priority area (Arts & Culture, STEM, 21st Century Skills, College & Career Readiness, or Specialized Movement)? ● Describe a program structure appropriate for TK–8 students? ● Does the proposer include strategies for recruitment, registration, and accommodating waitlists, including communication with school site staff and district approvals? Section B.i, ii.	•
Score: _____ / 20 points	
Criteria #2-Curriculum Design – Part A (20 points)	**Notes**
2. Program Design Curriculum Part A ● How well does the proposer detail a purposeful sequencing of the curriculum specific to all grade levels? (B. iv.) ● How well does the proposer provide a developmentally appropriate curriculum across each grade band? (B. v.) Section B.iv. and v.	•
Score: _____ / 20 points	
Criteria #3-Curriculum Design – Part B (20 points)	**Notes**

3. Program Design Curriculum Part B ● How well does the proposer describe the ways in which the agency will ensure a quality enrichment program in the quality standards outlined below for expanded learning? (B. vi. b,c,d) ○ Active and Engaged Learning- Do activities demonstrate meaningful, engaging learning that promotes collaboration and expands student experiences? (B. vi. b.) ○ Skill Building – Does the program connect objectives and age-appropriate curriculum to 21st-century skills and support student mastery? (B. vi. c.) ○ Youth Voice and Leadership-Does the program provide opportunities for students to contribute to program design and participate in authentic leadership roles? (B. vi. d.) Section B.vi.	•
Score: _____ / 20 points	
Criteria #4-Organizational Operations (10 points)	**Notes**
4. Organizational Operations ● Does the proposer describe the agency's capacity to hire, train and retain staff? **(C. i.)** ● Does the proposer describe how the agency will recruit and retain students? **(C. ii.)** ● Does the proposer describe the agency's capacity to ensure that substitutes are provided in the event of a staff member's absence? **(C. iii.)** ● Does the proposer outline professional development and ongoing coaching/support for staff, including compliance with district training requirements (Sexual Harassment, Mandated Reporter, New Hire Orientation)? Section C i., ii. iii.	•
Score: _____ / 10 points	
Criteria #5-Program Evaluation (10 points)	**Notes**
5. Program Evaluation ● How well does the proposer articulate their strategy for evaluating the program's effect on students, encompassing goals, methods, and metrics? (D. i.) ● How well does the evaluation strategy detail the application of data for continuous quality improvement? (D.ii.) Section D.i., ii.	•

Score: _____ / 10 points	
Criteria #6-Budget (20 points)	**Notes**
6. General Budget Information ● Did the proposer complete the program budget template with all the requested details included? **(E.i.)** ● Does the proposer provide a detailed budget narrative that clearly explains the rationale behind their budget? **(E.ii.)** Section E.i, ii.	•
Score: _____ / 20 points	

Final Evaluation Total: (Minimum to advance-80 points)

Program Design: _____ / 20

Curriculum Design – Part A: _____ / 20

Curriculum Design – Part B: _____ / 20

Organizational Operations: _____ / 10

Program Evaluation: _____ / 10

Budget: _____ / 20

TOTAL SCORE: _____ / 100

Evaluator Signature: _____

ATTACHMENT 2

FIRM PROPOSAL / OFFER FORM

This Proposal/Offer Form must be duly executed and submitted with any proposal/offer to SAUSD.

The Offeror hereby agrees that its proposal/offer is subject to all RFP 12-26 provisions, terms and conditions, attachments, exhibits, amendments and other applicable materials which are attached or incorporated by reference. Offeror hereby agrees to promptly enter into an agreement in substantial accordance with such RFP provisions, terms and conditions, and secure a performance bond within five (5) days of the Districts intent to award the contract.

The Offeror hereby agrees that its attached proposal/offer of which this is part, is a firm and irrevocable offer and valid for acceptance by SAUSD for the period sixty (60) days after closing. The Offeror hereby agrees that if its proposal/offer is accepted by SAUSD that it shall provide all of the services in accordance with the RFP, as it may be amended.

Name of Person Duly Authorized to Execute this Proposal/Offer: _____

Duly Authorized Signature: _____

Title: _____

Date of this Proposal/Offer: _____

Offeror Name: _____

Offeror Address: _____

_____

Offeror Telephone: _____

Offeror Email: _____

ATTACHMENT 3

SANTA ANA UNIFIED SCHOOL DISTRICT
1601 East Chestnut Avenue
Santa Ana, California 92701-6322
(714) 558-5614

INTERMEDIATE AFTER SCHOOL ENRICHMENT PROVIDERS
RFP: #12-26

NONCOLLUSION DECLARATION
Public Contract Code § 7106

TO BE EXECUTED BY SUBMITTER AND SUBMITTED WITH RFP

The undersigned declares:

I am the_____[**PRINT YOUR TITLE**]

of_____[**PRINT FIRM NAME**],

the party making the foregoing Contract.

The RFP is not made in the interest of, or on behalf of, any undisclosed person, partnership, company, association, organization, or corporation. The RFP is genuine and not collusive or sham. The submitter has not directly or indirectly induced or solicited any other submitter to put in a false or sham RFP. The submitter has not directly or indirectly colluded, conspired, connived, or agreed with any submitter or anyone else to put in a sham RFP, or to refrain from submitting. The submitter has not in any manner, directly or indirectly, sought by agreement, communication, or conference with anyone to fix the RFP price of the submitter or any other submitter, or to fix any overhead, profit, or cost element of the RFP price, or of that of any other submitter. All statements contained in the RFP are true. The submitter has not, directly or indirectly, submitted his or her RFP price or any breakdown thereof, or the contents thereof, or divulged information or data relative thereto, to any corporation, partnership, company, association, organization, RFP depository, or to any member or agent thereof, to effectuate a collusive or sham RFP, and has not paid, and will not pay, any person or entity for such purpose.

Any person executing this declaration on behalf of a submitter that is a corporation, partnership, joint venture, limited liability company, limited liability partnership, or any other entity, hereby represents that he or she has full power to execute, and does execute, this declaration on behalf of the submitter.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct and that this declaration is executed on the following date:

Date: _____

Proper Name of Submitter: _____

City, State: _____, _____

Signature: _____

Print Name: _____

Title: _____

ATTACHMENT 4

AGREEMENT FOR CONSULTANT SERVICES

This Agreement for Consultant Services ("Agreement") is made effective as of July 1, 2025 ("Effective Date") by and between the Santa Ana Unified School District ("District") and Consultant] ("Consultant"). The District and the Consultant may be referred to herein individually as a "Party" and collectively as the "Parties."

RECITALS

A. The District is authorized by Section 53060 of the California Government Code to contract with and employ any persons for the furnishing of special services and advice in financial, economic, accounting, engineering, legal, and administrative matters, if such persons are specially trained and experienced and competent to perform the special services required.

B. The District has a need for the following services ("Services"): provides [enter brief, general description of services – found on the IK12.

C. The District has determined that the Services are not available within the District, cannot be performed satisfactorily by District employees, or are of such a highly specialized or technical nature that the necessary expert knowledge, experience, and ability are not available through the District.

D. The District has determined that the Consultant is specially trained, experienced, and competent to perform services of the same type and nature as the Services described herein.

E. The Parties have entered into this Agreement for purposes of setting forth the terms and conditions for the Consultant to provide the Services for the District.

Now, therefore, in consideration of the foregoing and of their respective rights and obligations pursuant to this Agreement, consideration that each Party hereby acknowledges is adequate, the Parties agree as follows:

AGREEMENT

PART 1. PERFORMANCE OF SERVICES

Section 1.1 Scope of Services. A detailed description of the Services to be performed by the Consultant pursuant to this Agreement ("Scope of Services") is set forth in Exhibit "A" attached to this Agreement. The Consultant shall perform the Services in strict accordance with the Scope of Services and other provisions of this Agreement.

Section 1.2 Agreement Term. The term of this Agreement ("Term") shall commence on the Effective Date and, unless this Agreement is earlier terminated in accordance with its provisions, the Term shall expire on June 30, 2026.

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Section 1.3 District and Consultant Administrators. The representatives of the District identified in Exhibit "B" attached to this Agreement (each a "District Administrator") shall, on behalf of the District, be responsible for administering this Agreement and for monitoring, overseeing, evaluating, approving, and accepting the Services provided pursuant to this Agreement. The representatives of the Consultant for all purposes of this Agreement and the Services (each a "Consultant Administrator") are also identified in Exhibit B hereto. The Consultant Administrators shall coordinate the performance of the Services with the District Administrators and shall direct any and all questions, submittals, and receivables to the District Administrators. For avoidance of doubt, no supplement, amendment, or other modification to this Agreement shall be valid or binding absent approval (whether directly or through delegation and ratification) by the Board of Education of the Santa Ana Unified School District ("District Board").

Section 1.4 Coordination and Metrics. The Parties shall reasonably cooperate in scheduling and conducting monthly meetings, at mutually acceptable times and dates, to include: (i) one or more of the District Administrators; (ii) other District representatives as the District deems appropriate and/or necessary; (iii) one or more of the Consultant Administrators; and (iv) other Consultant representatives as the Consultant deems appropriate and/or necessary. The purpose of such monthly meetings shall be to coordinate and discuss the progress of the Services, as well as any potential or existing concerns or issues relating to the Services. The Parties shall establish mutually acceptable criteria and processes for ongoing program assessment and evaluation, which may include, but is not limited to, the District's assessment metrics and other metrics that may be applicable in connection with District, local, state, or federal programs. The Parties also shall, from time to time as determined appropriate by the District, review program content to ensure that the Consultant's services and standards are aligned with the District's goals, including, but not limited to, its Local Control Accountability Plan ("LCAP").

Section 1.5 Time is of the Essence. Time is of the essence with respect to the performance by the Consultant of each and all of the Services and of the Consultant's other obligations pursuant to this Agreement.

Section 1.6 Labor, Materials, and Supplies. The Consultant shall furnish, at its own expense, any and all labor, materials, equipment, supplies, and other things needed by the Consultant to satisfactorily perform the Services in accordance with this Agreement.

Section 1.7 Permits/Licenses. The Consultant and, as applicable, its officers, employees, volunteers, agents, and other representatives (collectively, "Consultant Staff") shall secure and at all times during performance of the Services shall maintain in effect any and all such certifications, permits, licenses, and other authorizations as are required by law in connection with the performance of the Services.

Section 1.8 Independent Contractor. For all purposes of this Agreement, the Consultant shall be deemed and construed to be an independent contractor to the District. Neither the Consultant nor any of the Consultant Staff shall, as a result of this Agreement, be considered to be, or shall be authorized to act as, an officer or employee of the District. Except to the extent the Consultant or any of the Consultant Staff are, by virtue of this Agreement, considered to be an agent of the District, neither the Consultant nor any of the Consultant Staff shall be authorized to act on behalf of the District, and none of them shall suffer or permit any person or entity to persist in the apparent belief that any of them is an officer, employee, or agent of the District. In connection with the Services and this Agreement, the Consultant shall be fully responsible for the acts and/or omissions of the Consultant Staff. Neither the Consultant nor any of the Consultant Staff shall, as a result of this Agreement, be entitled to benefits of any type or nature normally provided to employees of the District and/or to which the District's

SAMPLE

employees are normally entitled, including, without limitation, State Unemployment Compensation or Workers' Compensation. The Consultant shall be responsible for payment of any and all federal, state, and local taxes or contributions, including, without limitation, unemployment insurance, social security, and income taxes attributable to its employees and/or other Consultant Staff. No compensation shall be payable to the Consultant pursuant to this Agreement on account of any costs incurred by Consultant to comply with any of the foregoing requirements.

Section 1.9 Compliance with Applicable Laws. The Consultant shall comply with any and all federal, state and local laws, rules, regulations, ordinances, and other governmental requirements that are or in the future may become applicable to the Consultant's activities in connection with this Agreement and/or the Services.

Section 1.10 Nondiscrimination and Other Policies. In connection with this Agreement and the Services, and without limiting anything else in this Agreement, the Consultant shall not discriminate against any person in violation of applicable federal, state, or local laws, including, without limitation, on the basis of the person's race, color, religion, national origin, ancestry, disability, marital status, gender, gender identity, sexual orientation, genetic information, age, or military veteran status. Without limiting the foregoing, the Consultant shall comply with and shall enforce all District policies and administrative regulations applicable to the presence and/or activities in, on, or at any District school or other property, including, without limitation, prohibitions against weapons, alcohol, and tobacco.

Section 1.11 Conflicts of Interests. The Consultant hereby represents and warrants that neither it nor any of its officers has any financial, business, professional, personal, or other interests, including, but not limited to, the representation of other parties, that would conflict in any manner or degree with the performance of the Consultant's obligations pursuant to this Agreement. Such conflicts could include, but are not limited to, those contemplated by Government Code Section 1090, the California Political Reform Act (Government Code Section 87100 *et seq.*), and other California law. If any such conflict of interests (whether actual or potential) arises in connection with this Agreement, the Consultant shall immediately inform the District, in writing, regarding such conflict. If the District reasonably determines that any actual or potential conflict of interests exists with respect to the performance of the Services, then the District, without liability to or recourse by the Consultant, may terminate the Agreement by giving written notice to the Consultant, and the termination shall be effective upon receipt of the notice by the Consultant.

Section 1.12 Consultant Compensation.

Subsection 1.12.1 Consultant Fee. The District shall pay to the Consultant, in exchange for satisfactory performance by the Consultant of the Services required pursuant to this Agreement, such compensation as is specified in Exhibit "C" attached to this Agreement ("Consultant Fee"). The Consultant Fee shall be payable to the Consultant as specified in Exhibit C. The Consultant Fee, as it may be adjusted in accordance with this Agreement, shall be deemed and construed to: (i) be all-inclusive, full, and final compensation to the Consultant for the Services provided; and (ii) compensate the Consultant for any and all overhead, profit, and other amounts associated with performance of the Services.

Subsection 1.12.2 Reimbursement of Expenses. The Consultant shall in no event be entitled to reimbursement of any expenses that it incurs in connection with performance of the Services other than as provided in this Subsection. Any reimbursement pursuant to this Subsection shall be in addition to the Consultant Fee and shall be for the reasonable, actual costs incurred by the Consultant, without any markup. A condition precedent to reimbursement of each expense is that the Consultant

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must obtain the District's written approval of that expense prior to the expense being incurred by the Consultant, and the District shall not unreasonably deny, delay, or condition any such approval. Without limiting the foregoing, in no event shall the District be required to reimburse the Consultant for any of the following: (i) home-office overhead or personnel costs; (ii) supplies, materials, equipment, tools, and other items required for performance of the Services; (iii) postage or cost of private delivery services less than $25 for any one delivery; (iv) salary, benefits, travel, lodging, and/or meal expenses of any person; (v) expenses of overtime work requiring higher than regular rates; or (vi) costs of any additional insurance coverages or limits in excess of those normally carried by the Consultant or any of its contractors or consultants that may be authorized to perform portions of the Services.

Subsection 1.12.3 Consultant Invoices. On or about the fifth day of each month following a month in which the Consultant performed any Services, the Consultant shall provide an invoice to the District seeking payment for the portion of the Consultant Fee attributable to the preceding month and, subject to Subsection 1.12.2 herein, for reimbursement of expenses incurred during the preceding month. Any and all invoiced amounts are subject to verification by the District. The Consultant must in each invoice specifically describe the basis or bases for the amounts requested and shall submit with the invoice such documentation as reasonably, specifically, and adequately evidences and supports the amounts specified in the invoice. If an invoice requests payment for Services provided on an hourly-rate basis, the documentation to be submitted by the Consultant in support of the invoice must also include an itemization of the amount of time spent by each person performing the Services and the work accomplished by such person during such time. The District shall pay the undisputed portion of each such invoice within thirty days after receipt of the invoice. However, within ten days after receipt of any invoice from the Consultant, the District may request in writing that the Consultant provide additional information relating to some or all of the amounts specified in the invoice, and, in such event: (i) the Consultant shall provide such information to the District within five days following receipt of the District's request; and (ii) if the Consultant does not provide the requested information within such five-day period, the date by which the District must pay such amounts to the Consultant shall be extended for each day or portion of day in excess of the applicable five-day period, until such time as the Consultant provides that information to the District.

PART 2. CONFIDENTIAL AND OTHER INFORMATION

Section 2.1 Data Sharing. The Parties acknowledge that it may become necessary for the District to share data regarding or relating to one or more District students with the Consultant or Consultant Staff, for purposes of determining program impact or for other purposes relating to the Services. In such event, and prior to the District sharing any Student Data, the Parties shall enter into a separate "Standard Student Data Privacy Agreement" that shall be applicable to: (i) all student data shared pursuant to this Agreement; and (ii) the Consultant and the Consultant Staff. Notwithstanding the foregoing: (i) the District in its discretion may decline to comply, in whole or in part, with any request for student data, if the District determines that providing the requested student data would not be in the best interests of current or former District students; and (ii) each request for student data must be approved by the Executive Director of the District's Research and Evaluation Department.

Section 2.2 Applicable Privacy Requirements.

Subsection 2.2.1 Family Educational Rights and Privacy Act. The Family Educational Rights and Privacy Act set forth in 20 U.S.C. Section 1232g ("FERPA") and 34 CFR Part 99, the federal regulations that implement FERPA, set forth requirements for protecting the privacy of parent and student information, including, among others, requirements for maintaining the confidentiality of personally

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identifiable information (e.g., names, addresses, telephone numbers, dates of birth, test scores, et cetera). To the extent, in connection with the Services, the Consultant or any of the Consultant Staff accesses, obtains, stores, uses, or discloses any information within the scope of FERPA (regardless of whether inadvertently, accidentally, purposefully, or otherwise), then, without limiting anything else in this Agreement, the Consultant shall comply with any and all applicable requirements of FERPA and its implementing regulations.

Subsection 2.2.2 Health Insurance Portability and Accountability Act. The Health Insurance Portability and Accountability Act, Public Law 104-191 ("HIPAA") and the federal regulations that implement HIPAA, set forth requirements for, among other things, use and disclosure of individuals' health information, including, among others, requirements for individuals to control use of their health information and for entities possessing such health information to properly protect it from unauthorized disclosure. In addition, the Health Information Technology for Economic and Clinical Health Act of 2009, Public Law 111-0005 ("HITECH") and the federal regulations that implement HITECH, address concerns associated with electronic transmission of health information and establishes penalties for violations. To the extent, in connection with the Services, the Consultant or any of the Consultant Staff accesses, obtains, stores, uses, or discloses any information within the scope of HIPAA and/or HITECH (regardless of whether inadvertently, accidentally, purposefully, or otherwise), then, without limiting anything else in this Agreement, the Consultant shall comply with any and all applicable requirements of HIPAA and/or HITECH, and their respective implementing regulations.

Section 2.3 Consultant Confidentiality Obligation. Except as provided in Section 2.4 herein, the Consultant and Consultant Staff shall keep confidential and not disclose to any other person or entity any of the Confidential Student Information that: (i) the Consultant or any of the Consultant Staff obtain or discover during or as a consequence of performing the Services; or (ii) is provided to the Consultant or any of the Consultant Staff by the District or any parent, guardian, student, or other person. For purposes of this Agreement, but without limiting anything else in this Agreement:

(i) "Confidential Student Information" means any and all information regarding the identity, condition, family members, home address, participation in programs, or other "personally identifiable information" of or relating to District students enrolled in or receiving Services that is provided to, learned by, or inferred by the Consultant or any of the Consultant Staff, including, without limitation, any information volunteered by a District student; and

(ii) "Personally identifiable information" means any information (in whatever form or format) that: (1) can be used to distinguish or trace an individual's identity, such as name, social security number, personal identification number, student identification number, date and place of birth, mother's maiden name, street address, email address, internet protocol address, telephone number, photograph, and fingerprints or other biometric information; or (2) is linked or linkable to an individual, such as medical, educational, financial and employment information, race, religion, and activities.

Section 2.4 Required Disclosure. The Consultant shall give written notice to the District immediately upon becoming aware that any subpoena, order, demand, or other process seeking or requiring disclosure or other release of any Confidential Student Information is being sought or has been issued. In each such event, the District shall be permitted to intervene for purposes of attempting to stop or limit the disclosure of Confidential Student Information. The Consultant may, notwithstanding Section 2.3 herein, disclose Confidential Student Information if, but only if, a court or other governmental entity with competent jurisdiction has ordered that the information be disclosed or has authorized a subpoena

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seeking disclosure of the information. In such event, disclosure shall be limited solely to the scope of disclosure ordered by the court or other governmental entity.

Section 2.5 Disclosure to District. Notwithstanding anything else in this Agreement, and upon request of the District from time to time, the Consultant shall provide to the District full and unaltered copies of any or all of the Confidential Student Information possessed by the Consultant or any of the Consultant Staff.

PART 3. HEALTH AND SAFETY OF STUDENTS AND OTHERS

Section 3.1 Background Checks.

Subsection 3.1.1 Purpose and Intent. The Parties acknowledge and agree that, for purposes of Education Code Section 45125.1, the Consultant Staff who may at any time be present in or at any District school ("On-Site Personnel") will not at all times be directly supervised by a student's parent or guardian or by District staff. Therefore, the Consultant shall, with respect to all On-Site Personnel, comply with the requirements of Section 45125.1 relating to background checks and criminal history summaries.

Subsection 3.1.2 Procedural Requirements. With respect to the On-Site Personnel, the Consultant shall comply with all applicable California Department of Justice ("DOJ") requirements for background checks. For purposes of such background checks, and without limiting the Consultant's obligation to comply with DOJ requirements, the Consultant shall cause all On-Site Personnel to be fingerprinted either: (i) by the Santa Ana Unified School Police Department ("Department"), in its offices located at 1601 E. Chestnut Avenue, in the City of Santa Ana; or (ii) at any location where Live Scan services are available, using the agency identifier number assigned to the District by the DOJ (the "Originating Requesting Identifier" or "ORI"). The Consultant may obtain the District's ORI by contacting the Purchasing Department at (714) 558-5614.

Subsection 3.1.3 Certification and Subsequent Reporting. Prior to allowing any of the On-Site Personnel to be present in or at any District school or other property, and using the form attached as Exhibit "D" to this Agreement, the Consultant must list the On-Site Personnel and certify to the District that none of the listed On-Site Personnel have been convicted of any serious or violent felony described in Education Code Section 44237. The Consultant shall, with respect to the On-Site Personnel, provide, directly to the District's Department of School Police, any and all subsequent arrest activity reported by the California Department of Justice.

Subsection 3.1.4 Personnel Identification. Each of the On-Site Personnel who will be performing or otherwise present at any District school must, on each visit, without exception, check in at the administrative offices of the school before entering further into the school or onto the school grounds. On-Site Personnel must show valid, government-issued identification, so the administrative staff may confirm that each such person is on the list of persons cleared in accordance with Education Code Section 45125.1. No person may enter further into the school or onto school grounds if the person is not on the list of cleared personnel. In each case, upon confirming that the On-Site Personnel have been cleared, the administrative staff will issue a temporary identification using the Raptor system, which identification must be worn in a conspicuous location on the person's front, upper body at times during that visit at the school.

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Section 3.2 Tuberculosis Assessment and Examinations. The Consultant shall ensure that the On-Site Personnel in each case have complied with the Tuberculosis assessment and examination procedures specified in Education Code Section 49406, regardless of whether that Section expressly makes those requirements applicable to the Services. Prior to allowing any of the On-Site Personnel to be present in or at any District school, the Consultant shall provide to the District a copy of each certificate, as described in subdivisions (c) and (d) of Education Code Section 49406, indicating that the On-Site Personnel are free from infectious Tuberculosis.

PART 4. INTELLECTUAL PROPERTY RIGHTS

Section 4.1 District Ownership. The Consultant hereby acknowledges that, because of the nature of the services to be performed by the Consultant pursuant to this Agreement, the performance of those services may result in technologies, formulae, procedures, processes, methods, writings, ideas, dialogue, compositions, recordings, teleplays, and/or video productions ("Works") being specifically created, prepared, written, or otherwise developed for the District in connection with this Agreement. All such Works, and any and all derivatives thereof, shall be deemed and construed to constitute works for hire, such that the District is the owner of the Works. In addition, the Consultant hereby separately assigns to the District, without limitation, any and all copyright, trademark, patent, use, and other rights the Consultant may have or obtain in the Works and any derivatives of the Works. The Consultant consents to use of the Consultant's name in connection with the use, performance, sale, and/or distribution of some or all of the Works, for any purpose and in any medium.

Section 4.2 Third Party Ownership. Section 4.1, above, shall not be deemed or construed to apply to any third-party proprietary and/or copyrighted designs or information not created specifically for purposes of this Agreement and that the Consultant intends to incorporate into the services performed pursuant to this Agreement (each a "Third-Party Work"). The Consultant shall provide written notice to the District if the Consultant intends to use any Third-Party Work in connection with, or incorporate any Third-Party Work into, the Consultant's services or the products thereof, if any permission, license, or other specific authorization is required for such use and/or any licensing fee or other charge is payable in connection with such use or incorporation. Unless the District has already obtained (or has agreed in writing to obtain) any and all necessary rights to use or incorporate any Third-Party Work without any ongoing or additional licensing fees or other charges, and without need for renewing any registration or similar obligation, the Consultant shall be responsible at its sole cost for obtaining any and all rights for the use or incorporation of the Third-Party Work. Notwithstanding anything to the contrary, the District shall have no obligation to obtain rights to use or incorporate any Third-Party Work unless the District specifically requests that the Consultant use or incorporate that specific Third-Party Work. Subject to the foregoing, the Consultant represents and warrants that it has or will have the legal right to use and/or incorporate any and all Third-Party Work in connection with the services to be performed pursuant to this Agreement and/or the products thereof. The Consultant shall indemnify, hold-harmless and defend the District, in accordance with this Agreement, with respect to claims arising out of any failure or alleged failure of the Consultant to comply with its obligations pursuant to this Section.

PART 5. INDEMNIFICATION

Section 5.1 Indemnification by Consultant. The Consultant shall indemnify and hold harmless the District, the Board of Education of the District and each individual member thereof, and the District's other officers, employees, and agents (collectively, but not including the District, the "District Representatives"), and each of them, with respect to any and all damages, losses, judgments, costs, and expenses (including, without limitation, attorney's fees and expenses), and other liabilities of whatever

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nature (each a "Liability" and, if referencing multiple, the "Liabilities") that arise from any negligent act or omission, or any willful misconduct, of the Consultant or any of its directors, officers, employees, or agents (collectively, but not including the Consultant, the "Consultant Representatives") in connection with this Agreement or the Services. The Consultant shall defend, as applicable, the District and the District Representatives with respect to any and each claim, demand, action, or other proceeding (each a "Proceeding") that by allegation or implication is within the scope of the Consultant's indemnification obligations pursuant to this Section. Each such defense must be conducted by qualified and appropriately experienced legal counsel reasonably acceptable to the District, but selected and retained by the Consultant, at no cost to the District or any of the District Representatives.

Section 5.2 Indemnification by District. The District shall indemnify and hold harmless the Consultant, the Consultant Representatives, and each of them, with respect to any and all Liabilities that arise from any negligent act or omission, or any willful misconduct, of the District or any of the District Representatives in connection with this Agreement or the Services. The District shall defend, as applicable, the Consultant and the Consultant Representatives with respect to any and each Proceeding that by allegation or implication is within the scope of the District's indemnification obligations pursuant to this Section. Each such defense must be conducted by qualified and appropriately experienced legal counsel reasonably acceptable to the Consultant, but selected and retained by the District, at no cost to the Consultant or any of the Consultant Representatives.

Section 5.3 Comparative Liability. Notwithstanding the Sections 5.1 and 5.2 herein, if both Parties are, to some extent, responsible for any particular Liability (i.e., the negligence or willful misconduct of both Parties, or others for whom they are responsible, are contributing factors), then, in connection with that Liability, each Party shall be responsible for defending itself and its representatives, and the Parties shall be responsible and liable on a comparative basis.

Section 5.4 Insurance Not a Limitation on Liability. Neither Party's obligations pursuant to this Part 5 shall be deemed or construed to be: (i) conditioned upon, or in any manner limited by, any insurance coverage maintained by a Party or other person or entity; or (ii) conditioned upon the receipt by any Party, person or entity of, or limited to the amount of, any insurance proceeds.

Section 5.5 Interpretation. For avoidance of doubt and for all purposes of this Agreement: (i) a Party's obligation to indemnify another Party, person, or entity ("Indemnitee") means that the "indemnifying" Party shall compensate the Indemnitee for, or secure or protect the Indemnitee against, the harm, loss, damages, costs, expenses, and other liabilities as may be incurred by the Indemnitee, and such obligation shall not be limited solely to third-party claims; and (ii) an indemnifying Party's obligation to hold harmless an Indemnitee means that the indemnifying Party shall not seek compensation from the Indemnitee for, or otherwise seek to make the Indemnitee responsible for, the harm, loss, damages, costs, expenses, and other liabilities incurred by the indemnifying Party.

Section 5.6 Survival. With respect to any and all acts, omissions, and incidents that occur prior to the termination of this Agreement, the Parties' respective rights and obligations pursuant to this Section shall survive termination of this Agreement.

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PART 6. INSURANCE

Section 6.1 Required Policies. Prior to commencing any of the Services, the Consultant must procure (if applicable) and, during all periods required by this Agreement, must maintain in effect, the insurance policies required pursuant to this Part 6 ("Required Policies"). The Required Policies include the following:

(i) General Liability Insurance. A policy of commercial general liability insurance that is written on an "occurrence" basis and that provides coverage with a combined single limit of not less than $1,000,000 for all activities conducted by the Consultant pursuant to this Agreement ("General Liability Policy"). The General Liability Policy must include, without limitation, coverage for the contractual liability assumed by the Consultant pursuant to this Agreement.

(ii) Business Auto Liability Insurance. A policy of business auto liability insurance (however denominated) that is written on an "occurrence" basis, and has coverage limits of not less than $1,000,000 per occurrence and $1,000,000 aggregate ("Vehicle Liability Policy"). The Vehicle Liability Policy must include, without limitation, coverage for liability, property damage, bodily injury, and uninsured-underinsured motorists.

(iii) Abuse-Molestation Insurance. A policy of abuse-molestation insurance ("Abuse Policy") that: (1) is separate from the General Liability Policy and any professional liability and other insurance policies that the Consultant may have in effect; (2) is written on an "occurrence" basis; (3) has coverage limits of not less than $3,000,000 per occurrence and $6,000,000 aggregate; (4) provides coverage for direct and vicarious liability associated with sexual misconduct and other physical abuse, and for verbal, emotional, mental, and other non-physical abuse; (5) covers acts and omissions by, among others, the Consultant's staff; (6) provides coverage for the District prior to any determination that an accused abuser is guilty; and (7) provides for payment of defense costs outside the Abuse Policy's coverage limits. The Consultant shall comply with any and all risk management controls reasonably required by the insurer that issues the Abuse Policy.

(iv) Professional Liability Insurance. A policy of professional liability insurance, with coverage in an amount not less than $1,000,000 per occurrence and $2,000,000 aggregate ("Professional Liability Policy"). The District acknowledges that the Professional Liability Policy shall be written on a "claims made" basis. The Professional Liability Policy shall be subject to all of the following: (1) the effective date of the coverage must be shown and must be prior to the date the Consultant commences performance of the Services; (2) the coverage must be maintained, and evidence of coverage must be provided, for at least two years following final payment to the Consultant pursuant to this Agreement; (3) if coverage is cancelled or renewed, and not replaced with another claims-made policy having a retroactive coverage date that is prior to or the same as the date the original policy took effect, the Consultant must purchase extended-period coverage (i.e., tail) that provides coverage until the end of the two-year period described in the preceding clause; and (4) upon request, a copy of any and all claims reporting requirements, for original and replacement policies, must be submitted to the District for review.

(v) Cyber Liability. Cyber Liability Insurance with limits of no less than $1,000,000 for each occurrence or event with an annual aggregate of $2,000,000 covering privacy violations, information theft, damage to or destruction of electronic information, intentional and/or unintentional release of private information, alteration of electronic information, extortion, and network security. The policy shall protect the District and cover breach response costs and regulatory fines and penalties.

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(vi) Workers' Compensation Insurance. A policy of workers' compensation insurance as required by California law ("Worker Compensation Policy"). Notwithstanding the insurer standards set forth in Section 6.2 herein, coverage provided by the California State Compensation Insurance Fund shall be deemed, with respect to the Worker Compensation Policy, to satisfy such insurer rating standards.

Section 6.2 Insurer Standards. The insurance policies required pursuant to this Part 6 must be issued by one or more insurers authorized to do business in the State of California and having an A.M. Best Company rating (i.e., "Best's Rating") of not less than an "A-" (i.e., "A Minus") and Financial Size Category of not less than "VII."

Section 6.3 Situs. Notwithstanding any choice-of-law, conflict-of-laws, or other provision of any federal, state or other law, each of the Consultant's insurance policies must be "situs" California, so that all interpretations and disputes, if any, shall be subject to and governed by California law, any and all actions and other proceedings to interpret or enforce rights or obligations under the Required Policies shall be initiated and commenced in the County of Orange, California.

Section 6.4 Additional Insureds. Each of the General Liability Policy, the Vehicle Liability Policy, and the Abuse Policy shall name (or be endorsed to name) as additional insureds in connection with this Agreement and the Services: (i) the District, the District Board and each individual member thereof, and the District's other officers, employees, and agents (collectively, but not including the District, the "District Agents"). The additional insured endorsements must be ISO form CG 2010 11/85 or alternative approved in advance by the District, in its reasonable discretion. For purposes of this Section, and without otherwise limiting the District's discretion to determine an alternative to form CG 2010 11/85, a combination of ISO forms CG 2010 10/01 and CG 2037 10/01 shall be deemed an acceptable alternative to ISO form CG 2010 11/85.

Section 6.5 Cross Liability and Subrogation.

Subsection 6.5.1 Cross Liability. A cross liability provision in an insurance policy allows the insurance to be applied to each of the policy holder and additional insureds, as if the policy had been issued to each of them. This way, if one insured sues another insured, the insurance policy will still provide coverage. Each of the Required Policies, other than the Worker Compensation Policy, must be endorsed to include a cross liability provision.

Subsection 6.5.2 Subrogation. A waiver of subrogation ensures that, if an insurer pays on a claim or loss, the insurer won't be able to then pursue another party for reimbursement of the amounts paid. An insurance policy may or may not provide for subrogation as to additional insureds, but an insured party typically can waive subrogation on behalf of its insurers. With respect to the Required Policies, the Consultant hereby waives, on behalf of itself and its insurers, any and all rights of subrogation against the District and the District Agents. In addition, each of the Required Policies must be endorsed to include a waiver of subrogation applicable to the District and District Agents.

Section 6.6 Consultant Insurance is Primary. To the extent permitted by law, the Required Policies shall be primary and non-contributing with respect to any insurance or self-insurance programs covering the District and/or any of the District Agents. Each of the General Liability Policy, the Vehicle Liability Policy, the Abuse Policy, Cyber Liability, and the Professional Liability Policy must be endorsed to provide that it is so primary and non-contributory.

SAMPLE

Section 6.7 Deductibles and Self-Insured Retentions. The Consultant must disclose in writing to the District any and all deductibles and self-insured retentions applicable to any of the insurance policies the Consultant is to have in effect pursuant to this Agreement. Each deductible or self-insured retention requirement in excess of $10,000 is subject to discretionary approval by the District and, at the option of the District, the Consultant either: (i) must cause the insurer to reduce or eliminate such deductibles or self-insured retentions with respect to claims arising in connection with this Agreement; or (ii) must provide a financial guarantee satisfactory to the District that guarantees payment of losses and related investigations, claim administration, and defense expenses. Each insurance policy that is subject to any deductible or self-insured retention must be endorsed to permit the District to pay the deductible or retention in the event the Consultant is the subject of any bankruptcy proceeding (whether voluntary or involuntary) or otherwise is unable to, or does not, pay such amount.

Section 6.8 Evidence of Coverage. The requirements of this Part 6 are mandatory and can be waived or modified only by written consent of the District, which consent the District may grant, deny, or condition in its sole discretion. Prior to, and as a condition precedent to, commencing the Services, the Consultant must provide to the District: (i) such duly-authorized and executed certificates of insurance as reasonably evidence that Required Policies are in full force and effect (each a "Certificate of Insurance"); (ii) a copy of each and all endorsements required pursuant to this Part 6; and (iii) if applicable, the written disclosure of deductibles and self-insured retentions required pursuant to this Part 6. The Certificates of Insurance shall identify those who are to be named as additional insureds in accordance with this Agreement. The Consultant must, as applicable: (i) provide written notice to the District not less than thirty days prior to any cancellation, termination, reduction in coverage, or expiration without renewal of any such insurance policy; and (ii) provide updated Certificates of Insurance to the District promptly upon renewal of any of the Required Policies.

PART 7. DISPUTE RESOLUTION AND TERMINATION

Section 7.1 Governing Law. Notwithstanding any conflict-of-laws, choice of law, or other provision in any federal, state, or local law or other governmental requirement, this Agreement shall be governed by and interpreted in accordance with the laws of the State of California. Each and every claim, demand, action, and other proceeding that arises from this Agreement shall be initiated and conducted only in an appropriate court of competent jurisdiction located in the County of Orange, California.

Section 7.2 Dispute Resolution. The Parties desire to quickly and cost-effectively resolve any disputes related to the interpretation or enforcement of this Agreement. Therefore, each Party shall make best efforts to resolve informally any such disputes. If the Parties are able to agree on the terms and procedures for mediation, the Parties may agree that the informal resolution attempts will include mediation of any such dispute. If, not less than thirty calendar days after first making informal attempts to resolve any such dispute, the informal attempts have been unsuccessful, (or, if the Parties have agreed to mediation, after termination or completion of mediation without resolution of the dispute) either Party may thereafter initiate litigation or other proceedings as deemed appropriate by such Party.

Section 7.3 Attorneys' Fees. In connection with any and each claim, demand, action, mediation, arbitration, and other proceeding between or involving the Parties that arises from this Agreement and/or the Services, each Party shall be responsible for paying its own costs, including, without limitation, attorneys' fees and other legal costs and expenses, including, without limitation, collection expenses, expert witness fees, and court costs.

SAMPLE

Section 7.4 Termination for Cause. Either Party (as "Alleging Party") may terminate this Agreement, for cause, if the other Party (as "Defaulting Party") has defaulted on its obligations pursuant to this Agreement and has not cured that default within thirty days following notice from the Alleging Party that details the default in reasonable detail ("Notice of Default"). In the event a Defaulting Party has not timely cured a default within the applicable thirty-day period, the Alleging Party may thereafter provide a notice of termination to the Defaulting Party, and the termination shall be effective immediately upon receipt of the notice by the Defaulting Party.

Section 7.5 District Termination for Convenience. Notwithstanding anything to the contrary, the District, at any time and without need for cause or reason, may terminate this Agreement, in whole or in part, by giving written notice of termination to the Consultant, and such termination shall be effective immediately upon receipt of the notice by the Consultant.

PART 8. MISCELLANEOUS

Section 8.1 Assignment. The Consultant may not assign any of its rights pursuant to this Agreement or delegate any of its obligations pursuant to this Agreement absent the express written consent of the District, which consent the District may withhold, grant, or condition in its sole discretion.

Section 8.2 Entire Agreement/Amendment. This Agreement sets forth the entire agreement of the Parties with respect to the matters addressed in this Agreement, and this Agreement supersedes and replaces any and all prior and contemporaneous discussions, understandings, and agreements with respect to such matters. This Agreement may be amended or otherwise modified, in each case, only by a written instrument duly approved, signed, and delivered by both Parties.

Section 8.3 Waiver. No waiver by a Party of any provision of this Agreement shall be binding or enforceable unless it is set forth in writing and has been duly approved and signed by the waiving Party. The failure of a Party to seek redress for violation of, or to insist upon, the strict performance of any term or condition of this Agreement, shall not be deemed a waiver by that Party of such term or condition, or prevent a subsequent similar act from again constituting a violation of such term or condition.

Section 8.4 Notice. Each notice or demand given pursuant to this Agreement (each a "Notice") must be in writing and delivered by: (i) personal service; (ii) registered or certified U.S. Mail, return receipt requested, and postage prepaid; (iii) FedEx, UPS, or other reliable private delivery service, signature on delivery receipt required and delivery charges prepaid; or (iv) electronic mail (i.e., email) transmission (with original of the Notice deposited into the U.S. mail, first-class postage prepaid, within twenty-four hours after transmission). Notices: (i) must be addressed and sent to the applicable person(s) and address(es) specified for purposes of Notice in Exhibit B to this Agreement; and (ii) shall be deemed to have been given or served only upon actual receipt by the recipient. As an additional condition to sending a Notice by email, the reference (or "re") line must be specified as "NOTICE: AGREEMENT FOR CONSULTANT SERVICES." Because email addresses are subject to change more frequently than physical addresses, if a Notice is to be sent by email, and unless the sender has actual knowledge of the then-current correct email address of each intended recipient, the sender must call and verify the then-current email address of each intended recipient prior to sending the Notice, or must use some other method of delivering the Notice. A Party may change its address or other contact information for purposes of this Section by written notice in accordance with this Section. This Section shall not be deemed or construed

SAMPLE

to apply to: (i) communications between the Parties for purposes of the day-to-day administration of this Agreement; or (ii) service of process in accordance with any applicable law or rule of court.

Section 8.5 Severability. If a court of competent jurisdiction determines that any term, condition, or provision of this Agreement is invalid, void, or unenforceable, the remaining provisions shall nevertheless continue in full force and effect, and shall not be affected, impaired, or invalidated in any way.

Section 8.6 Exhibits and Recitals. Any and all recitals set forth herein and any and all exhibits attached hereto are hereby incorporated as operative and effective provisions of this Agreement. In the event any one or more of the exhibits to this Agreement incorporate all or any portion of any proposal for the Services provided by the Consultant, and any provision in the main body of this Agreement or elsewhere in any Exhibit conflicts with or otherwise is inconsistent with any provision in the proposal, the provision in the main body of the Agreement or elsewhere in the Exhibits shall govern over the provision in the proposal.

Section 8.7 Fair and Reasonable Interpretations. Each Party acknowledges that, prior to the Effective Date, that Party has received, or had unqualified opportunities to receive, independent advice from its own legal counsel regarding meaning of the provisions herein and the advisability of entering into this Agreement. Therefore, the provisions of this Agreement shall be interpreted based on their fair and reasonable meanings, and not for or against a Party based on whether that Party or its legal counsel was primarily responsible for drafting this Agreement or any particular provision herein.

Section 8.8 Headings and Captions. The headings and captions set forth in this Agreement are for the convenience of the reader only and shall not be deemed to establish, define, or limit the meaning of any Section or other provision.

Section 8.9 Correct Legal Requirements Deemed Included. Each and every provision required by any applicable law to be included in this Agreement is hereby deemed to be so included, and this Agreement shall be construed and enforced as if all such provisions are so included.

Section 8.10 No Third-Party Beneficiaries. The Parties have entered into this Agreement solely for their own purposes, and this Agreement shall not be deemed or construed to: (i) benefit any third party; (ii) create any right for any third party; or (iii) except as provided by law, provide a basis for any claim, demand, action, or other proceeding by any third party.

Section 8.11 Agreement is Public Record. Notwithstanding anything to the contrary: (i) nothing in this Agreement shall be deemed or construed to constitute confidential information; and (ii) this Agreement is a public record which the District may disclose in accordance with California law or otherwise.

(The remainder of this page intentionally left blank.)

SAMPLE

PART 9. EXECUTION OF AGREEMENT

Section 9.1 Counterparts. This Agreement may be executed in one or more counterparts, each of which shall be deemed to be an original and all of which, taken together, shall constitute one and the same instrument. Signature pages may be detached from counterpart originals and combined to physically form one or more copies of this Agreement having original signatures of both Parties. Signature pages sent via email shall also constitute original signatures under this Agreement.

Section 9.2 Due Authority. Each person who signed this Agreement on behalf of a Party shall be deemed and construed to thereby represent and warrant that he or she has been duly authorized by that Party to sign, and thereby bind the Party to, this Agreement.

In witness of the foregoing, the Parties have executed this Agreement, as evidenced by the signatures below of their respective, duly authorized representatives.

DISTRICT: Santa Ana Unified School District	CONSULTANT: [Consultant Name]
By: _____	By: _____
Signature	Signature
Michael Esparza	
Printed Name	Printed Name
Director of Purchasing	
Title	Title
_____	_____
Date Signed	Date Signed

Board of Education Approval Date:

SAMPLE

EXHIBIT "A"
SCOPE OF SERVICES

Consultant will provide … [Insert a detailed description of the Services to be provided by the Consultant

The site should have attached a SOW – or we can use what's in the description on the IK12.

SAMPLE

EXHIBIT "B"
PARTY REPRESENTATIVES

Consultant

A. As of the Effective Date, the Consultant Administrators (see Section 1.3 of the main body of this Agreement) are:

(i) [insert name and title], who is the primary Consultant contact person with respect to administration of this Agreement; and

(ii) [insert name and title], who is the secondary Consultant contact person in the event the Consultant's primary contact person is unavailable or in other extraordinary circumstances.

B. As of the Effective Date, the Consultant representative to whom Notices are to be sent in accordance with Section 8.4 of the main body of this Agreement, and that person's contact information, are:

Send Notices to:
[insert Consultant entity name]
Attn: [insert representative name and title]
[insert street address]
[insert city, state, zip code]
Email: [insert person's email address]

District

A. As of the Effective Date, the District Administrators (see Section 1.3 of the main body of this Agreement) are:

(i) [insert name and title], who is the primary District contact person with respect to administration of this Agreement.

(ii) [insert name and title], who is the secondary District contact person in the event the District's primary contact person is unavailable or in other extraordinary circumstances.

B. As of the Effective Date, the District representatives to whom Notices are to be sent in accordance with Section 8.4 of the main body of this Agreement, and their respective contact information, are:

Send Notices to:
Santa Ana Unified School District
Attn: Michael Esparza – Director of Purchasing
1601 E. Chestnut Ave
Santa Ana, CA 92701
Email: Michael.esparza@sausd.us

EXHIBIT "C"
CONSULTANT COMPENSATION

In exchange for full and satisfactory completion of the Services, the District shall compensate the Consultant as follows:

Choose the appropriate method of compensation below and delete the others – WE TYPICALLY USE METHOD 2:

Method 2
A Consultant Fee that shall in no event exceed the total amount of $_____ ("Maximum Total Fee"), allocated and payable to the Consultant on a monthly not-to-exceed basis ("Maximum Monthly Fee"), as determined by dividing the Maximum Total Fee by the number of months in the Term. If the Term is not divisible into equal monthly periods, the remainder (i.e., final payment period) shall be deemed to be a month for purposes of determining the Maximum Monthly Fee. In each case that, in accordance with the provisions in the main body of this Agreement, the Term is duly extended or the time for completion of the Services otherwise is extended, the Maximum Monthly Fee shall be recalculated in accordance with the foregoing.

Method 3
A Consultant Fee based on the rate of $_____ per hour, not to exceed a total of $_____ for full and final completion of all Services required pursuant to this Agreement.

Method 4
A Consultant Fee based on the hourly rates set forth in the Schedule of Hourly Rates below, not to exceed a total of $_____ for full and final completion of all Services required pursuant to the Agreement. *If use this provision, insert schedule of hourly rates below.*

EXHIBIT "D"

CERTIFICATION REGARDING ON-SITE PERSONNEL

District: Santa Ana Unified School District

Consultant: [Insert Consultant Name]

Agreement: Agreement for Consultant Services dated _____, 2025

The undersigned hereby certifies to the District, subject to penalty for perjury pursuant to the laws of the State of California, that all of the following is true and correct:

(i) The undersigned is a duly authorized representative of the Consultant identified above on this form and, in that capacity, has executed this certification on behalf of the Consultant;

(ii) The Consultant has fully complied with the requirements of this Agreement for criminal-history background checks of On-Site Personnel, including, without limitation, with respect to personnel that the Consultant may consider to be employees of its contractors or consultants, if any;

(iii) None of the On-Site Personnel identified on the Attachment(s) to this certification have any pending criminal proceeding for, or have been convicted of, any violent or serious felony as defined in Education Code Section 45122.1;

(iv) The Consultant shall permit only those persons identified on the Attachment(s) to this certification to provide any of the Services, or otherwise be present at any of the District's schools.

Representative Name: _____

Representative Title: _____

Representative Signature: _____

Date Signed: _____

Attachment #5

Equipment Tracker Template

NOTE: Equipment Tracker is only for equipment valued at $500.00 or more.

Equipment Item Name	Equipment Description (Brand/Serial Number)	QTY	Total Cost